

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**
JESUS RODRIGUEZ

VERIFIED COMPLAINT

Plaintiff(s),

INDEX No.

-against-

**THE CITY OF NEW YORK and POLICE OFFICER
FELIX BAEZ (SHIELD NO. 4759),**

Defendant(s).

THE PLAINTIFF(s), complaining of the defendants by and through his attorneys, Kelly & Rubin, LLP., respectfully shows to this court and alleges:

ALLEGATIONS PERTAINING TO ALL CAUSES OF ACTION

1. Upon information and belief that all times hereinafter mentioned, the defendant, The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. Upon information and belief, that at all times hereinafter mentioned, the defendant The City of New York, its agents, servants and/or employees operated, maintained and controlled the Police Department of the City of New York, including all the police officers employed thereby.

3. Upon information and belief, that at all times hereinafter mentioned, Police Officer Felix Baez was an employee of the Police Department of the City of New York and was acting in his official capacity as such and within the scope of his employment.

4. Plaintiff at all relevant times hereinafter was and still is a resident of Bronx County, City and State of New York.

5. Plaintiff was arrested on September 29, 2016 in Bronx County, City and State of New York and was charged with Criminal Possession of a Weapon in the Third Degree and related charges.

6. Criminal proceedings were commenced at the request of the defendants against plaintiff before a judge of the criminal court in Bronx County.

7. That on or about September 29, 2016 in the County of the Bronx, City and State of New York, the defendants their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained the plaintiff without any right or grounds therefore.

8. That on or about September 29, 2016, the defendants wrongfully and falsely accused Plaintiff of a crime or crimes in violation of the New York State Penal Law.

9. That the said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the plaintiff was guilty of such crime or crimes.

10. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct that defendant, their agents, servants and/or employee undertook, and was forced by the defendants to submit to the aforesaid arrest and imprisonment entirely against his will.

11. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York, Bronx County.

12. That the defendants, their agents, servants and/or employees, as set forth above on or about the above date, time and place, intended to confine the plaintiff, the plaintiff was conscious of the confinement, the plaintiff did not consent to the confinement, and the confinement was not

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otherwise privileged.

13. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, was prevented and hindered from performing and transacting his necessary affairs and business, and was caused to suffer pain in both mind and body.

14. All charges against Mr. Rodriguez were dismissed on December 13, 2017.

15. That Notice of the Plaintiff's Claim and Intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was timely served upon the defendant City of New York on December 21, 2017.

16. That a hearing pursuant to §50h of the General Municipal Law of the State of New York was held on April 17, 2018.

17. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

18. That this action is commenced within one year and ninety days after the causes of action arose.

AS AND FOR A FIRST CAUSE OF ACTION
(COMMON LAW MALICIOUS PROSECUTION)

19. Plaintiff repeats and re-alleges each and every allegation in the preceding paragraphs with the same force and effect as if more fully and at length set forth herein.

20. That on or about the 29th day of September 2016, before the Honorable presiding Judge of the Criminal Court of the City of New York, Bronx County the defendants, their agents,

servants and employees falsely and maliciously and without probable cause or provocation charged Mr. Jesus Rodriguez with violations of the NYS Penal Law.

21. That the plaintiff was and is wholly innocent of the charges he was alleged by the defendants to have committed, and was forced by the defendants to submit to court proceedings.

22. That upon examination, the said charges were falsely and maliciously made. That a Judge of the Criminal Court of the City of New York dismissed all charges against Mr. Jesus Rodriguez on December 13, 2017.

23. That the said criminal charges and prosecution were instituted and procured by the defendants, their agents, servants and/or employees in this action unlawfully and maliciously and without any reasonable or probable cause whatsoever therefore. That the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff were without probable cause, were with actual malice and were terminated in favor of the plaintiff.

24. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and that said plaintiff has been otherwise damaged.

25. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorney's fees and such other relief as this court may deem just and proper.

**AS AND FOR A SECOND CAUSE OF ACTION
(FALSE ARREST 42 U.S.C. §1983)**

26. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs above with the same force and effect as if fully set forth herein.

27. That at the time of the commission of the acts alleged hereinabove by the police officers of the City of New York against the person of the plaintiff, Jesus Rodriguez was and remains a permanent resident of the United States.

28. That the acts of defendants as above set forth were performed under color of state law in deprivation of plaintiff's rights, privileges and immunities secured to him by the United States Constitution and its laws.

29. That by reason of the foregoing, plaintiff is entitled to redress and to damages by reason of Section 1983, Title 42 of The Public Health and Welfare Law of the United States.

30. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorney's fees and such other relief as this court may deem just and proper.

**AS AND FOR A THIRD CAUSE OF ACTION
(MALICIOUS PROSECUTION 42 U.S.C. §1983)**

31. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs above with the same force and effect as if fully set forth herein.

32. That at the time of the commission of the acts alleged hereinabove by the police officers of the City of New York against the person of the plaintiff, Jesus Rodriguez was and remains a permanent resident of the United States.

33. That the acts of defendants as above set forth were performed under color of state law in deprivation of plaintiff's rights, privileges and immunities secured to him by the United States Constitution and its laws.

34. That by reason of the foregoing, plaintiff is entitled to redress and to damages by

reason of Section 1983, Title 42 of The Public Health and Welfare Law of the United States.

35. That by reason of the aforesaid, the plaintiff has been damaged in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, plus punitive damages, plus costs, attorney's fees and such other relief as this court may deem just and proper.

WHEREFORE, plaintiff demands judgment against the defendants as follows:

On each claim for relief, judgment in an amount to be determined at a trial of this action but believed to be in excess of the jurisdictional limits of all lower courts, and plaintiff demands an additional sum of punitive damages against each defendant to be determined at the trial of this action; and in the event plaintiff is a prevailing party, attorney's fees; and interest, costs, and such other relief as to this Court shall seem just and proper.

Dated: New York, New York
June 7, 2018

Yours, etc.,

Michael F. Rubin, Esq.
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To: The City of New York
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100 Church Street
New York, New York 10007

Police Officer Felix Baez
PSA 7
737 Melrose Avenue
Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX
JESUS RODRIGUEZ,

**ATTORNEY'S
VERIFICATION**

Plaintiff(s),

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-against-

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Defendant(s).

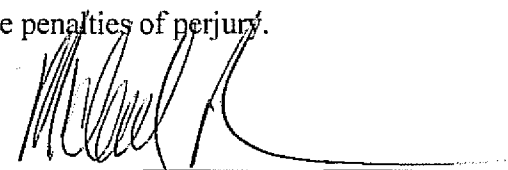
STATE OF NEW YORK }
} ss.:
COUNTY OF NEW YORK }

I, Michael F. Rubin, the undersigned, an attorney admitted to practice in the Courts of the State of New York, and say that:

I am the attorney of record for the Plaintiff in the above-entitled action. I have read the annexed Summons and Verified Complaint, know the contents thereof and the same are true, except for those matters stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge is based upon the contents of the file maintained in my offices. The reason I make this affirmation instead of plaintiff, is that plaintiff does not reside in the county where your affiant maintains his offices.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: June 7, 2018



Michael F. Rubin, Esq.
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